

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #10	CCRB Case #: 201602553	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/25/2016 6:35 PM	Location of Incident: 115th Precinct stationhouse	18 Mo. SOL 9/25/2017	Precinct: 115
Date/Time CV Reported Fri, 03/25/2016 6:51 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/25/2016 6:51 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Weinman	21785	947602	115 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Andrew Fitts	00977	938484	115 PCT
2. POF Caitlin Mcnamara	18399	944797	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Weinman	Abuse: Police Officer Daniel Weinman threatened § 87(2)(b) with the use of force.	A . Unsubstantiated

Case Summary

On March 25, 2016, § 87(2)(b) went to the 115th Precinct stationhouse per a custody agreement he had with his ex-wife and mother of his daughter, § 87(2)(b). At the stationhouse, § 87(2)(b) daughter refused to go with him as planned, prompting an argument between § 87(2)(b) and § 87(2)(b). PO Weinman, who was the assigned T/S Operator, prepared the Domestic Incident Report to document this disagreement (Board Review 8). § 87(2)(b) became upset, and repeatedly requested a copy of the report. PO Daniel Weinman told § 87(2)(b) that he was not entitled to a copy of any report, and should go to family court to further address the situation. § 87(2)(b) continued to demand a copy of the report, and asked to speak to a supervisor. PO Weinman's supervisor, Sgt. Andrew Fitts, was assigned to the desk, and addressed § 87(2)(b). Sgt. Fitts reiterated that § 87(2)(b) would have to deal with the problem in family court. Because § 87(2)(b) remained upset and persistently demanded a copy of the report, PO Weinman instructed him to leave the stationhouse. PO Weinman made this request several times, and § 87(2)(b) repeatedly refused. § 87(2)(b) alleged that during this conversation, PO Weinman told him, "I'm telling you nicely to leave. If you don't walk out of the precinct, I will take you out," which § 87(2)(b) perceived as a threat to use force (**Allegation A**). § 87(2)(b) felt intimidated, and left the stationhouse.

There is no video footage of this incident, but § 87(2)(b) provided an audio recording of his interaction with the officers at the stationhouse (Board Reviews 09 and 12).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of May 19, 2016, § 87(2)(b) has not filed a notice of claim regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b) second complaint with the CCRB. § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
- PO Weinman has been a member of the NYPD for seven years, and this allegation is the first CCRB allegation against him (Board Review 11).

Findings and Recommendations

Allegation A—Abuse of Authority: PO Daniel Weinman threatened § 87(2)(b) with the use of force.

It is undisputed that after they argued about the domestic incident report that PO Weinman prepared, PO Weinman instructed § 87(2)(b) to leave the stationhouse. § 87(2)(b) alleged that upon asking him to leave, PO Weinman told him, “That’s it--done. I’m telling you nicely to leave. If you don’t walk out of the precinct, I will take you out,” in what § 87(2)(b) perceived as a threat to use force against him. § 87(2)(b) denied that PO Weinman made any additional threats. On the audio recording of the interaction provided by § 87(2)(b) PO Weinman is heard making similar statements to the one alleged, including, “That’s it” multiple times, and “I’m telling you nicely right now to leave the precinct.” PO Weinman is also heard saying, “You need to leave the precinct on your own, or you will be forced out of the precinct. Your choice.” During his CCRB interview, PO Weinman explained that when he made this statement to § 87(2)(b) he intended to warn him that if he did not leave the stationhouse, he could be arrested for trespassing. PO Weinman also testified that he explicitly warned § 87(2)(b) of the risk that he could be arrested for trespassing if he did not leave of his own volition. PO Weinman denied that he or any other officer threatened to use any force against § 87(2)(b) Sgt. Fitts, who was the assigned desk officer at the time of the incident, corroborated that PO Weinman told § 87(2)(b) that he would have to address the situation at family court, and Sgt. Fitts reiterated these instructions to § 87(2)(b) Sgt. Fitts testified that he also told § 87(2)(b) that he had to leave the stationhouse, and § 87(2)(b) did so without any further issue. Sgt. Fitts denied that PO Weinman made the alleged threatening statement, threatened to use any force against § 87(2)(b) or mention any consequences for § 87(2)(b) if he did not leave the stationhouse.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date